

cross-complainant, or intervenor brought the proceeding with reasonable cause and in the good faith belief that there was a justifiable controversy under the facts and law which warranted the filing of the complaint..." (Code of Civ. Proc., § 1038, subd. (a).) Section 128.7 deals with: (1) whether the claims are brought for an improper purpose, such as to harass or cause delay; (2) whether legal contentions are warranted by existing law or a nonfrivolous argument for an extension, modification, etc., of the law; and (3) whether the allegations have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery. (Code of Civ. Proc., § 128.7, subd. (b).) These are distinct standards and it is not clear that one can apply the standard applicable to Section 1038 to Section 128.7.

Finally, under Code of Civil Procedure section 128.7, "to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if 'any reasonable attorney would agree that [it] is totally and completely without merit.' " (*McCluskey v. Henry* (2020) 56 Cal.App.5th 1197, 1205.) Here, plaintiff Pitts, an AC Transit driver, was allegedly injured at an AC Transit bus stop in a city within Contra Costa County. It cannot be said that any reasonable attorney would agree that suing the county in this situation for premises liability is *totally and completely without merit*. This also goes to subdivision (b)(3) of Section 128.7, which asks "whether the allegations have evidentiary support or are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery."

Ruling

For the reasons analyzed above, Defendant's motion for sanctions pursuant to Code of Civil Procedure section 128.7 is DENIED.

11. 9:00 AM CASE NUMBER: C25-03580
CASE NAME: BETTY VETRO, BY AND THROUGH HER SUCCESSOR-IN-INTEREST, NICK VETRO VS. MARTINEZ SNF HEALTHCARE LLC
HEARING ON PETITION IN RE: BRING ELDER ABUSE ACTION IN THE NAME OF BETTY VETRO, DECEASED
FILED BY: VETRO, NICK
TENTATIVE RULING:

Plaintiff Nick Vetro ("Plaintiff") filed a petition pursuant to Welfare and Institutions Code 15657.3(d) for leave to prosecute the Pending Action on December 17, 2025 (the "Petition"). The Petition was set for hearing on May 4, 2026. The Motion is unopposed.

Background

The Complaint herein was filed on December 4, 2025 by BETTY VETRO, by and through her successor-in-interest, NICK VETRO (the "Pending Action").

The Petition is supported by NICK VETRO's declaration pursuant to Code of Civil Procedure section 377.32 (the "Supporting Declaration"). See Motion, **Exhibit A**.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure

proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest.**" See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the successor in interest and that "[n]o other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding." *Id.*

The Supporting Declaration filed by the successor-in-interest here complies with those requirements and the Petition is unopposed.

Disposition

The Court finds and orders as follows:

1. The Petition is GRANTED.
2. The Court shall issue the order after hearing.

12. 9:00 AM CASE NUMBER: C25-03686
CASE NAME: SAUNDRA MARTINEZ VS. TAPPAN ZEE, ESQ.
HEARING IN RE: PETITION FILED 12/28/25
FILED BY: MARTINEZ, SAUNDRA N
TENTATIVE RULING:

Plaintiff Saundra N. Martinez ("Plaintiff") filed a petition on December 18, 2025 (the "Petition"). The Petition was set for hearing on May 4, 2026.

Background

The Petition herein seeks "an immediate order to quash and/or dismiss the current writ of execution issued by the Elk Grove Sheriff's Department Levy officer (Jim Cooper Sheriff)."

No proof of service is on file herein.

Analysis

It appears to the Court that this matter may involve proceedings in relation to another case in this Court or out-of-county litigation pending before another court. The Court is inclined to issue an order to show cause regarding dismissal of this case.

Disposition

The Court finds and orders as follows:

1. Plaintiff to APPEAR to address the pending Petition.